GOVERNMENT OF INDIA
MINISTRY OF FINANCE
INCOME TAX DEPARTMENT
ITBA/EXM/F/EXM45/2026-27/1093953298(1)
CIT EXEMPTION, LUCKNOW

To, ANNANTH AASHA FOUNDATION KASARA 406 BISHRAKH ,HAIBATPUR BISRAKH GAUTAM BUDDHA NAGAR 201306 ,Uttar Pradesh India	

PAN: **ABACA6413D**	Application No: **CIT EXEMPTION, LUCKNOW/2026-27/12AA/10466**	DIN & Notice No: **ITBA/EXM/F/EXM45/2026-27/1093953298(1)**	Date: **26/09/2026**

FORM NO. 10AD
(See rule 2C or 11AA or 17A)
Order for registration or approval or rejection or cancellation

1.	Permanent Account Number (PAN) of the applicant	**ABACA6413D**
2.	Name and address of the applicant	**ANNANTH AASHA FOUNDATION KASARA 406 BISHRAKH , HAIBATPUR BISRAKH , GAUTAM BUDDHA NAGAR 201306 Uttar Pradesh, India**
2A.	Nature of activities	**Charitable**
3.	Document Identification Number	**ITBA/EXM/F/EXM45/2026-27/1093953298(1)**
4.	Application Number	**CIT EXEMPTION, LUCKNOW/2026-27/12AA/10466**
5.	Registration/Approval Number (Unique Registration Number)	**Not Applicable**
6.	Section/sub-section/clause/sub-clause/proviso in which registration/approval is being granted	**Not Applicable**
7.	Date of registration/approval/registration/cancellation	**26/09/2026**
8.	Assessment year or years for which the trust or institution is registered or approval	**Not Applicable**
9.	Reasons of rejection/cancellation, in case if the application for registration/approval has been rejected or cancelled	**As per annexure below.**
10.	Date of opportunity afforded to the applicant before such rejection or cancellation of application for registration/ approval	**10/07/2026**
11. Order for registration/approval: **Not Applicable**		

12. Conditions subject to which registration/approval is being granted: **Not Applicable**
13. Name and designation of the authority SHAURYA SHASHWAT SHUKLA CIT EXEMPTION, LUCKNOW

Annexure (mentioned in row-9 above)

ORDER UNDER CLAUSE 12AB(1)(b)READ WITH THE PROVISO TO CLAUSE 12A(1)(ac)OF THE INCOME-TAX ACT, 1961

1. This order disposes of an application filed by the applicant named **ANNANTH AASHA FOUNDATION** having PAN: **ABACA6413D**, in Form No. 10AB seeking registration under sub-clause (ii) of clause (ac) of sub-section (1) of Section 12A of the Income-tax Act, 1961 [hereinafter 'the Act']. However, on perusal of the records submitted by the applicant, it is noticed that the sub-clause (ii) isnot applicable to the applicant's case since the said sub-clause is applicable only to a case where the trust or institution is registered under section 12AB [or approved under sub-clause (iv) or sub-clause (v) or sub-clause (vi) or sub-clause (via) of clause (23C) of section 10] and the period of the said registration [or approval, as the case may be,] is due to expire, at least six months prior to expiry of the said period,which is not the case of the present applicant.

2. In this connection, it is pertinent to mention that the scope of the different sub-clauses is stipulated as under:

> ***"(ac) notwithstanding anything contained in clauses (a) to (ab), the person in receipt of the income has made an application in the prescribed form and manner to the Principal Commissioner or Commissioner, for registration of the trust or institution,—***
>
> > ***(i) where the trust or institution is registered under section 12A [as it stood immediately before its amendment by the Finance (No. 2) Act, 1996 (33 of 1996)] or under section 12AA [as it stood immediately before its amendment by the Taxation and Other Laws (Relaxation and Amendment of Certain Provisions) Act, 2020 (38 of 2020)], within three months from the first day of April, 2021;***
> >
> > ***(ii) where the trust or institution is registered under section 12AB [or approved under sub-clause (iv) or sub-clause (v) or sub-clause (vi) or sub-clause (via) of clause (23C) of section 10] and the period of the said registration [or approval, as the case may be,] is due to expire, at least six months prior to expiry of the said period;***

(iii) where the trust or institution has been provisionally registered under section 12AB [or provisionally approved under sub-clause (iv) or sub-clause (v) or sub-clause (vi) or sub-clause (via) of clause (23C) of section 10], at least six months prior to expiry of period of the provisional registration [or provisional approval, as the case may be,] or within six months of commencement of its activities, whichever is earlier;

(iv) where registration of the trust or institution has become inoperative due to the first proviso to sub-section (7) of section 11, at least six months prior to the commencement of the assessment year from which the said registration is sought to be made operative;

(v) where the trust or institution has adopted or undertaken modifications of the objects which do not conform to the conditions of registration, within a period of thirty days from the date of the said adoption or modification;

(vi) in any other case, where activities of the trust or institution have—

(A) not commenced, at least one month prior to the commencement of the previous year relevant to the assessment year from which the said registration is sought;

(B) commenced and no income or part thereof of the said trust or institution has been excluded from the total income on account of applicability of sub-clause (iv) or sub-clause (v) or sub-clause (vi) or sub-clause (via) of clause (23C) of section 10, or section 11 or section 12, for any previous year ending on or before the date of such application, at any time after the commencement of such activities, …"

3.It is, thus, clear that the various sub-clauses correspond to specific case scenarios

and an applicant is under statutory obligation to file the applicationonly under the sub-clause applicable to its case. It is also evident the sub-clause under which the instant application has been filed, does not apply to applicant's case.

4.The issue of application under the incorrect provision was brought to the notice of the applicant vide the following point of the notice:

> ***"…3.2 The onus of applying under the correct sub-clause lay on the applicant. It is, accordingly, recorded here that since this notice is being issued based on the sub-clause selected by the applicant, this authority reserves the right to reject the application on the application on the ground of non-maintainability, if the subclause is found not applicable to the case. .."***

5.It is, however, noted that no response has been givenby the applicant in connection with the defect of having applied under wrong provision.

6. On these facts and under such circumstances,the undersigned finds that the present application is liable to be rejected as non-maintainable on account of having been filed under the wrong sub-clause.

Ordered accordingly.

SHAURYA SHASHWAT SHUKLA
CIT EXEMPTION, LUCKNOW

Copy to:

1. The Addl./Joint Commissioner of Income Tax- RANGE 1 NOIDA
2. Assessing Officer- WARD 5(1)(2), NOIDA/
3.The applicant

SHAURYA SHASHWAT SHUKLA
CIT EXEMPTION, LUCKNOW

(In case the document is digitally signed please refer Digital Signature at the bottom of the page)

Signature Not Verified

Digitally Signed.
Name: SHAURYA SHASHWAT SHUKLA
Date: 26-Sep-2026 21:48:42
Location: DELHI (UT)